

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, MAY 21, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**WELLS FARGO BANK, N.A. v. ANDREW CRONIS
Case No. CL24-08776**

Motion to Vacate Dismissal Under CCP § 664.6 and Enter Judgment Pursuant to Stipulation

TENTATIVE RULING:

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Defendant never appeared in this action until an “appearance” via a stipulation filed by Plaintiff and for which Plaintiff paid the first appearance fee. The stipulation contains no information regarding Defendant’s contact information including telephone, email or address.

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].) Defendant never filed a responsive pleading in this action identifying an address of record. The court is not satisfied that the mailing address Plaintiff used for service of notice of motion provides notice and/or satisfies due process. This is especially true given the address in Fairfield used in the proof of service of summons and the address now used in the proof of service for mailing showing Westlake Village.

The motion for entry of judgment is DENIED WITHOUT PREJUDICE.